

10.	23CV1809	WHITE et al v. WHITE et al
Motion to Adopt Fair Market Value & Approve Partition		

Plaintiffs James A. White, Wilderich A White, Anna-Maria M. White, and Ilse-Maria Rosenberg (collectively “Plaintiffs”) move for an Order (1) Adopting the Fair Market Value of the Property in this matter, and (2) Approving the Plaintiffs’ agreement for partition of the Property by appraisal—under Code of Civil Procedure §§ 872.120, 873.910, 873.920, 873.930, 873.970, 873.980, and 874.316.

Plaintiffs and Defendant James White (“Defendant”) each own one-fifth interests in two parcels. Plaintiffs filed their Complaint on October 16, 2023. Plaintiffs served Defendant by publication. Defendant failed to appear and default was entered against him on May 2, 2025. By Court Order dated September 23, 2025, the Court appointed Angela Habercorn to appraise the parcels to start the partition process, which she completed.

Plaintiffs agree with the appraisals and request that the Court adopt the appraised values. While Defendant would normally be offered an opportunity to purchase the property, Plaintiffs argue that the normal process does not apply here since default was entered against Defendant. When the interests of all parties are undisputed or have been adjudicated, the parties may agree upon a partition by appraisal. (CCP § 873.910.) Based on the information presented, the Court hereby grants Plaintiffs’ Motion.

TENTATIVE RULING #10: PLAINTIFF’S MOTION TO ADOPT FAIR MARKET VALUE AND APPROVE PARTITION IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.